

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlo Vescovi	Team: Squad #14	CCRB Case #: 202105170	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 08/28/2021 10:00 AM	Location of Incident: 46th Street M/R train subway station	18 Mo. SOL 2/28/2023	Precinct: 114		
Date/Time CV Reported Mon, 08/30/2021 4:55 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 08/30/2021 4:55 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Karim Powell	15735	953270	114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Mina Ebraheem	25700	969672	114 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Karim Powell	Abuse: Police Officer Karim Powell threatened § 87(2)(b) with the use of force.	
B . POM Karim Powell	Off. Language: Police Officer Karim Powell made remarks to § 87(2)(b) based upon ethnicity.	
C . POM Karim Powell	Discourtesy: Police Officer Karim Powell spoke discourteously to § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

On August 30th, 2021, § 87(2)(b) a reporting non-witness, filed the following complaint via the CCRB's online website on behalf of § 87(2)(b) after seeing video from § 87(2)(b) who § 87(2)(b) did not otherwise know, posted to Twitter.

This case was marked sensitive due to media coverage of the incident in the New York Post and PIX11 (BR 13-14).

On August 28th, 2021, at approximately 10:00am, § 87(2)(b) was alone on the platform of the Manhattan-bound M/R train subway station at the 46th Street in Queens. PO Karim Powell and PO Mina Ebraheem, both of the 114th Precinct, were conducting a transit patrol assignment, and stood near the entrance to the platform. § 87(2)(b) took a photograph of PO Powell and PO Ebraheem on his cell phone and walked further down the platform to board the train. PO Powell and PO Ebraheem followed § 87(2)(b) and PO Powell confronted § 87(2)(b) and engaged § 87(2)(b) in conversation. PO Powell allegedly balled his fist and made a threatening gesture towards § 87(2)(b). **(Allegation A: Abuse of Authority,** § 87(2)(g), § 87(2)(b) began filming the incident on his cell phone and as PO Powell walked away, PO Powell stated, "You know what the problem is with you guys? America is so free," **(Allegation B: Offensive Language,** § 87(2)(g) **Allegation C: Discourtesy,** § 87(2)(g). § 87(2)(b) then left the subway station. No arrests or summonses resulted from this incident.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

As PO Ebraheem testified he was first equipped with BWC in May of 2021, within three months of the incident date, no OPMN was pled to him in regard.

The investigation received cell phone footage from § 87(2)(b) the relevant aspects of which are addressed in further detail below. There is no MTA surveillance footage in this case due to the subway station cameras not capturing the interaction between § 87(2)(b) and the officers (BR 16).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Karim Powell threatened § 87(2)(b) with the use of force.

The investigation established the following facts: On August 28th, 2021, at approximately 10:00am, § 87(2)(b) entered the 46th Street station of the M/R subway line on the Manhattan bound side. § 87(2)(b) was alone. PO Powell and PO Ebraheem were assigned to transit patrol standing near the turnstiles. § 87(2)(b) took a photograph of PO Powell and PO Ebraheem using his cell phone (BR 01) and continued walking down the platform. PO Powell followed § 87(2)(b) down the platform and got his attention by calling after § 87(2)(b) stopped, whereupon he and PO Powell engaged in a conversation.

§ 87(2)(b) testified (BR 02) that he took a photograph of PO Powell and PO Ebraheem because they were not wearing masks. On September 9th, 2022, the investigation generated and referred CCRB case number § 87(2)(b) to the NYPD's Office of the Chief of Department for improper social distancing. § 87(2)(b) testified that before he started filming on his cell phone, he told PO Powell, "You guys [PO Powell and PO Ebraheem] are spreading disease, you're not wearing your mask." At this point, PO Powell made a fist with his left hand and placed it in his open right palm, which § 87(2)(b) interpreted to be an escalation and a sign of physical aggression.

As § 87(2)(b) described that this portion of the incident occurred before he started filming, the alleged gesture is not captured on his cell phone video.

PO Powell testified (BR 04) that he never balled his hands and made a fist gesture towards § 87(2)(b). PO Ebraheem testified (BR 05) he never observed PO Powell make a fist gesture towards § 87(2)(b).

The NYPD's concurrent investigation, conducted by Patrol Borough Queens North (BR 15), substantiated allegations of improper body worn camera use, a uniform violation (exposed undershirt), failing to wear a mask, and being discourteous in his interaction toward § 87(2)(b) against PO Powell.

§ 87(2)(b) alleged that PO Powell threatened him with force by balling his fist and making a gesture towards § 87(2)(b). Without BWC footage or MTA surveillance footage, and given that this portion of the incident occurred prior to § 87(2)(b) recording on his cell phone, the investigation possessed no video footage capturing this allegation. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (B) Offensive Language: Police Officer Karim Powell made remarks to § 87(2)(b) based upon ethnicity.

Allegation (C) Discourtesy: Police Officer Karim Powell spoke discourteously to § 87(2)(b)

After his initial conversation with PO Powell, § 87(2)(b) began recording on his cell phone. It is undisputed that at the conclusion of the incident, PO Powell told § 87(2)(b) "You know what the problem is with you guys? America is so free."

This interaction is captured in its entirety in § 87(2)(b) cell phone video which he provided the investigation (BR 06). At 0:39 on the player timestamp, PO Powell turns back to § 87(2)(b) and states, "You know what the problem is with you guys? America is so free."

§ 87(2)(b) testified that he felt this remark was PO Powell expressing his discomfort with § 87(2)(b) having taken a perfectly legal photograph of him.

PO Powell testified that he made this remark because he felt like there was no reason for § 87(2)(b) to be taking photographs of him as an officer. PO Powell believed § 87(2)(b) took the photograph and confronted the officers because in America, the police cannot do anything about that type of behavior.

PO Ebraheem testified he heard PO Powell's remark but did not know what PO Powell was trying to communicate when he made this statement to § 87(2)(b).

NYPD Patrol Guide Procedure 203-10 (BR 07) states that members of service are prohibited from using discourteous or disrespectful remarks regarding another person's ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

NYPD Patrol Guide Procedure 200-02 (BR 08) states that members of service are to maintain a higher standard of integrity than is generally expected of others, and to value human life, respect the dignity of each individual and render their services with courtesy and civility.

PO Powell, PO Ebraheem, and § 87(2)(b) testimonies are all consistent with § 87(2)(b) cell phone video that PO Powell told § 87(2)(b) "You know what the problem is with you guys? America is so free." § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Powell has been a member of service for 10 years and has been a subject in one CCRB complaints and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On October 19th, 2022, a request was made to the New York City Office of the Comptroller for a Notice of Claim being filed in regards to this incident, the results of which will be added to the casefile upon receipt.

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 14

Investigator:	C.V.	Inv. Carlo Vescovi	10/31/2022
	Signature	Print Title & Name	Date

Squad Leader:	Cassandra Fenkel	IM Cassandra Fenkel	11/2/2022
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date